

Bihar Secretariat Service (Appointment through limited competitive examination to the grade of Section Officer) Regulation, 2009

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Bihar Secretariat Service (Appointment through limited competitive examination to the grade of Section Officer) Regulation, 2009

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Bihar Secretariat Service (Appointment through limited competitive examination to the grade of Section Officer) Regulation, 2009

Rule

BIHAR-SECRETARIAT-SERVICE-APPOINTMENT-THROUGH-LIMITED-COMPETITIVE-EXAMINATION-TO-THE-GRADE-OF-SECTION-OFFICER-REGULATION-2009 of 2009

Published on 18 June 2009

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Bihar Secretariat Service (Appointment through limited competitive examination to the grade of Section Officer) Regulation, 2009

Published vide Notification No. 15/BSS-02-03/2008 Ka-2917, dated 18.06.2009

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No. 15/BSS-02-03/2008 Ka-2917. - In exercise of powers conferred under subsection (2) of section-19 of Bihar

Secretariat Service Act, 2007 (Bihar Act 03, 2008) cadre controlling authority (Personnel and Administrative Reforms Department) makes the following Regulations in light of clause (b) of subsection (1) and subsection-2 of section-14 of the said Act, for appointment through limited competitive examination to the grade of Section Officer of the Bihar Secretariat Service -

1.

Short title and commencement.

(1)

This regulation may be called "Bihar Secretariat Service (Appointment through limited competitive examination to the grade of Section Officer) Regulation, 2009."

(2)

It shall come into force at once.

2.

Definitions.

- In these Regulations. Unless the context otherwise requires.-

(1)

'Available Vacancies' means calculated and reservation category wise requisitioned vacancies available on 1st April of every year against the 20 per cent posts in the grade of Section Officer of the service;

(2)

'Act' means the Bihar Secretariat Service Act, 2007 (Bihar Act 03, 2008);

(3)

'Service' means the Bihar Secretariat Service;

(4)

'Commission' means the Bihar Public Service Commission;

(5)

'Examination' means limited competitive examination conducted by the Commission for appointment to the grade of Section Officer of the service;

(6)

'Rules' means the Bihar Secretariat Service Rules, 2008.

(7)

'Assistant' means those Assistants of the Service who are confirmed in the Service and have completed five years of continuous service in Assistant grade excluding probation period;

(8)

Other words and reference used in these regulation and not defined herein shall have the meanings respectively assigned to them in Bihar Act 03, 2008 and Bihar Secretariat Service Rules, 2008.

3.

Appointment through Limited Competitive Examination.

(1)

According to the provisions contained in clause (b) of Subsection (1) of Section 14 of Act, 20% of posts in the grade of Section Officer of this service shall be filled through Limited Competitive Examinations from the Assistant grade according to the recommendation of the Commission on the basis of a Limited Written Competitive Examination held by the Commission for this purpose:

(2)

For this purpose, Personnel and Administrative Reforms Department shall calculate the vacancies on the basis of vacancies reported by different departments available on 1st April every year and reservation category wise requisition shall be sent to the Commission by 30th April.

4.

Holding of examination for appointment through Limited Competitive Examination.

(1)

The written examination for appointment through Limited Competitive Examination to the grade of Section Officer of the service shall be held and conducted by the Commission.

(2)

Eligibility and Conditions-For appearing at the Limited Competitive Examination, a candidate shall have to fulfill following conditions: -

(i)

Should be confirmed in the Assistant grade of the service.

(ii)

Length of service- He should have rendered a continuous service of five years in the Assistant grade excluding probation period.

(iii)

Every candidate will be given a maximum of three chances in this examination.

(iv)

Fees- A candidates shall have to pay such fees as may be prescribed from time to time by the Commission.

Provided that candidates belonging to the reserved categories may be given such relaxation in the required fees as prescribed by the Personnel and Administrative Reforms Department from time to time.

(3)

Determination of Eligibility-The Commission shall decide as to the eligibility of candidate for admission to this examination and the decision of the Commission will be final. Only such candidates may appear in the examination whose admit card shall be issued by the Commission for this purpose.

5.

Syllabus for Limited Written Competitive Examination.

- There shall be two papers in this examination. Each paper shall be of 100 marks and three hours duration. Each question shall be of multiple choice objective type.

Paper-I - Question related to General Knowledge, Constitution of India, Public Administration and Development shall be asked in the first paper.

Paper-II - Question related to following rules/codes shall be asked in the second paper-

(1)

Bihar Service Code

(2)

Bihar Pension Rules

(3)

Bihar Rules of Executive Business

(4)

Secretariat Instructions

(5)

Board Miscellaneous Rules

(6)

Bihar General Provident Fund Rules

(7)

Bihar Travelling Allowance Rules

(8)

Bihar Government Servants conduct Rules

(9)

Bihar Treasury Code

(10)

Bihar Financial Rules

(11)

Bihar Government Servant (Classification, Control and appeal) Rules, 2005

(12)

Right to Information Act, 2005

6.

Results.

- (i) A candidate shall have to obtain minimum qualifying marks as determined by the Personnel & Administrative

Reforms Department from time to time to be eligible for being included in the merit list after the examination.

(ii)

A list of eligible and reservation category -wise candidates shall be prepared by the Commission in order of merit and shall be recommended for appointment according to the requisitioned vacancies;

(iii)

Communication of results to a candidates shall be done according to the mode and procedure prescribed by the Commission;

(iv)

The validity of recommendation of the Commission shall be for one year from the date of its receipt in the department.

7.

Appointment.

- Success in the examination confers no right to a candidate for appointment to the post of Section Officer unless the State Government is satisfied after such enquiry, as may be considered necessary by the State Government, about his conduct during the service period. The decision of Personnel and Administrative Reforms Department, in respect of disqualification of a candidate recommended by the Commission shall be final.

8.

Penalty for misconduct.

(1)

A candidate shall be penalized for following misconducts : -

(i)

obtaining support for his candidature by any means;

(ii)

impersonating;

(iii)

procuring impersonation of any eligible person;

(iv)

submitting fabricated documents which have been tampered with;

(v)

making statement which are incorrect or false, or suppressing material information;

(vi)

resorting to any other irregular or improper means in connection with his candidature for the examination;

(vii)

misbehaving in the examination hall;

(viii)

using unfair means in the examination hall;

(2)

Attempting to commit or, as the case may be, abetting of all or any of the acts specified in the foregoing clauses, may, in addition to rendering him liable to criminal prosecution, make him liable-

(i)

to be disqualified by the Commission from the examination for which he is a candidate;

(ii)

to be debarred from examination either permanently or for a specified period;-

(a)

by the Commission- from any examination or selection held by the Commission,

(b)

by the State Government- from any service under the State Government,

(iii)

to disciplinary action in accordance with Bihar Government Servants (Classification, Control and Appeal) Rules, 2005;

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